

2026 PLD 64
[Balochistan High Court]

Judges: Honorable Justice Shaukat Ali Rakhshani



FAROOQ ANWAR ADVOCATE SUPREME COURT

versus

**SUB INSPECTOR AYAZ KHAN SHO/INVESTIGATION OFFICER, FIA, CYBER
CRIME CIRCLE, QUETTA**

**ADVOCATE-CLIENT PRIVILEGE AND PROTECTION AGAINST COERCIVE
INVESTIGATION.**

(a) Constitution of Islamic Republic of Pakistan, 1973---S.Article 199; Criminal Procedure Code, 1898---S.section 160; Qanun-e-Shahadat Order, 1984---S.Article 9, S.Article 12; Prevention of Electronic Crimes Act, 2016---S.section 21 (b), S.section 21 (c), S.section 21 (d), S.section 24 (a), S.section 24 (d), S.section 21; Evidence Act, 1872---S.section 126, S.section 129; Lawyers Welfare and Protection Act, 2023---S.section 2, S.section 9, S.section 2(a); Pakistan Legal Practitioners and Bar Councils Rules, 1976---S.Chapter XII, S.Rule 134---Advocate-client privilege and protection against coercive investigation.---

The court held that an advocate is protected by absolute privilege regarding client communications, and investigating agencies cannot force disclosure through a section 160 Cr.P.C. notice. The impugned notice was declared null and void for being issued without lawful authority.

Communications between an advocate and client for professional employment are strictly privileged under Article 9 of the Qanun-e-Shahadat Order, 1984, and Section 9 of the Lawyers Welfare and Protection Act, 2023. Unless the client expressly consents or the advocate acts in furtherance of an illegal purpose, investigating authorities cannot compel the disclosure of confidential material, nor

does the mere passive receipt of obscene material attract liability under Section 21 of the Prevention of Electronic Crimes Act, 2016.

Relied upon: Syed Ali Nawaz Gardezi v. Lt. Col. Muhammad Yusuf PLD 1963 SC 51; Syed Ali Nawaz Gardezi v. Lt. Col. Muhammad Yusuf PLD 1963 SC 51; Muhammad Maqsood Sabir Ansari v. District Returning Officer Kasur PLD 2009 SC 28; Muhammad Maqsood Sabir Ansari v. District Returning Officer Kasur PLD 2009 SC 28

Referred to: Muhammad Yaqoob Khan v. Adalat Khan 1983 CLC 976; Muhammad Yaqoob Khan v. Adalat Khan 1983 CLC 976

Baqir Bakhtiar for Appellant.

Asst. Attorney General, Assistant Director (Legal) FIA for Respondent.

For the foregoing reasons, the petition is allowed and consequently notice issued to the petitioner under section 160 of Cr.P.C. is declared null and void, having no legal effect.

SHAUKAT ALI RAKHSHANI, J.---The instant constitutional petition filed by the petitioner under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (Constitution"), carries the following relief;

"It is accordingly respectfully prayed that this Hon'ble Court may be pleased to call the respondents Nos. 1 and 2 as to under that law the petitioner name has been mentioned as accused and after inquiry cancel the notice under section 160 Cr.P.C. served to the petitioner with any other relief, in the interest of justice"

2. Condensed, but relevant facts essential for disposal of the case in hand are that the petitioner is a practicing advocate, who is representing his client Mubashir Naeem in three cases. Per petitioner, during pendency of the said cases, respondent No.1 served him with a notice under section 160 of the Criminal Procedure Code, 1898 ("Cr.P.C.") to offer explanation, regarding transmission of the obscene material to his cell number by his client.
3. Learned counsel for the petitioner inter alia contended that notice issued the petitioner under section 160 of Cr.P.C. is contrary to law and facts. Argued further that the petitioner being a practicing advocate was engaged by his client and has every right to defend him before any court of law and whatever was shared by his client with him was just for the purpose of brief and evidence, which was professional and confidential communication and the same is protected under the advocate-client relationship, more particularly, when respondent No.1 has failed to establish that the alleged material was transmitted by him to elsewhere with the purpose to publicly display. Maintained ahead that the petitioner could not divulge any professional communication, so taken place between him and his client, which is otherwise guaranteed by the Constitution and Articles 9 and 12 of the Qanun-e-Shahadat Order, 1984, ("Order of 1984"), Lastly prayed that the impugned notice needs to be quashed as the same has been issued by respondent No.1 to cover his

nefarious design only to intimidate, defame the petitioner and become a witness against his client, which is against the norms, ethics of advocacy and law.

Conversely, learned Asst. Attorney General along with Assistant Director (Legal) FIA unanimously opposed the contentions so put forth by the learned counsel for the petitioner and urged that notice under section 160 of Cr.P.C. was rightly issued against the petitioner as the obscene pictures and videos were transmitted by the accused to the petitioner's cell number, thus it was mandatory to inquire from the petitioner, regarding the said act, henceforth requested for dismissal of the petition.

4. Heard. Record perused in view of the valuable arguments of learned counsel for the adversarial parties.
5. It is case of the petitioner that he is a practicing Advocate and was counsel for his client namely Mubashir Naeem, who filed a suit for conjugal rights against Mehwish (wife of his client), whereas in rebuttal, said Mehwish also filed a suit for dissolution of marriage against his client, which are pending adjudication before learned Family Judge-IV, Quetta. However, during pendency of the suits, an FIR bearing No.07 of 2025 was registered with Federal Investigation Agency Cyber Crime Reporting Center, Quetta by said Mehwish against his client Mubashir Naeem under sections 21 (b) (c) (d) and 24 (a) (d) of Prevention of Electronic Crimes Act, 2016 ("PECA Act, 2016"), alleging therein that her husband is in possession of her obscene (Nude) videos and pictures. According to the petitioner, he represented his client Mubashir Naeem in all three above mentioned cases, but with utmost surprise, respondent No.1, on 14.03.2025 served him with a notice under section 160 of Cr.P.C., stating therein to appear before the inquiry officer on 24.03.2025 to offer explanation, regarding transmission of the said obscene pictures and videos.
6. In the quiet chambers of this case, a question echoes the loudest; whether a practicing Advocate, representing his client could be served with notice for not divulging the information of his client, which is otherwise confidential ?
7. To untangle the complexities of the matter in hand, it would be advantageous to reproduce Articles 9 and 12 of the Qanun-e-Shahadat Order, 1984 ("Order of 1984"), which reads as under;

"9. Professional communications. No advocate shall at any time he permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such advocate, by or on behalf of his client, or to state the contents or condition of any document with which he has become acquainted in the course and for the purpose of his professional employment, or to disclose any advice given by him to his client in the course and for the purpose of such employment:

Provided that nothing in this Article shall protect from disclosure---

- (1) any such communication made in furtherance of any illegal purpose; or
- (2) any fact observed by any advocate, in the course of his employment as such, showing that any crime or fraud has been committed since the commencement of

his employment, whether the attention of such advocate was or was not directed to such fact by or on behalf of his client.

12. Confidential communications with legal advisers. No one shall be compelled to disclose to the Court, tribunal or other authority exercising judicial or quasi-judicial powers or jurisdiction any confidential communication which has taken place between him and his legal professional adviser, unless he offers himself as a witness, in which case he may be compelled to disclose any such communications as may appear to the Court necessary to be known in order to explain any evidence which he has given, but no others.
13. Bare perusal of articles *ibid* manifests that it is a privilege of an advocate to maintain the secrecy, which is a foundational principle to the advocate-client relationship and is recognized in nearly all legal systems. A lawyer cannot be pressurized or compelled to disclose confidential client information, except under strict legal exceptions. This protection exists to preserve client trust, due process, and the rule of law as the same is protected by advocate-client privilege and the duty of confidentiality, which are fundamental legal principles designed to uphold the integrity of the legal justice system.
14. To protect the legal practitioners, while discharging their duties and for their welfare, the Government of Pakistan introduced the Lawyers Welfare and Protection Act, 2023 ("Act of 2023"), which aims to shield advocates from violence, threats, intimidation, assaults, harassment, or other external pressures that could prevent them from doing their professional work freely. For ease of convenience, section 9 of the Act of 2023 is facsimile hereunder,

"9. Privileged communication of advocate. Notwithstanding anything contained in any other law for the time being in force

(a) no person, public servant or any authority shall have the power to arrest, detain, investigate any advocate under any law for the time being in force to obtain any document, material or any information from such advocate pertaining to his professional duties; and

(b) the violation of the clause (a) shall be deemed as act of violence within the meaning of section 2."

Similarly, section 2 of the Act of 2023 provides the definitions, wherein it has been provided as under,

"2. Definitions; (1) In this Act, unless the context otherwise requires:-

(a) "act of violence" means any act committed by any person against an advocate with the intent to prejudice, affect or derail the process of impartial, fair and fearless conduct of cases before any court, tribunal or authority by which such advocate is engaged and shall include the following:

(i) harassment, coercion, assault, criminal force or threat impacting the living or working conditions of such advocate and preventing him from discharging his duties;

(ii) harm, injury, hurt either grievous or simple, or danger to the life of such advocate, either within the premises of the courts or otherwise:

(iii) coercion by whatsoever means, by any person or authority to reveal or part with privileged communication or material which an advocate is bound to hold in confidence under the law;

(iv) coercion by whatsoever means of an advocate not to represent or to withdraw his Vakalatnama or appearance to act, plead or appear on behalf of a client before any court, tribunal or authority:

(v) loss or damage to any property or documents or material which such advocate is bound to hold under the law, or

(vi) usage of derogatory language during the course of the judicial and quasi-judicial proceedings.

(b) "advocate shall have the same meaning as assigned thereto in the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973):

(c) "Bar Council" shall have the same meaning as assigned thereto in the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973):

(d) "Code" means the Code of Criminal Procedure, 1898 (Act No. V of 1898);

(e) "Court" means the court notified under section 5 or established under any other law;

(t) "Government" means the Federal Government or the Provincial Government, as the case may be and

(g) "offence" denotes any act made punishable under this Act or under any other law for the time being in force, and

(h) "privileged communication" shall have the same meaning as given in the Oamun-e-Shahadat, 1984 (P.O. No. 10 of 1984), (2) Any expression or words used in this Act but not specifically defined shall have the same meaning as assigned thereto in the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973) and the Pakistan Penal Code, (Act XLV of 1860)."

[Underline is ours]

10. Section 9 of the Act of 2023, clearly demonstrates that an advocate, who is engaged as counsel for his client is protected by advocate-client privilege and by the duty of confidentiality, thus whatever the communication is shared among them is protected by the law for the time being and an authority cannot force him for obtaining any document, material or any information from such advocate, pertaining to his professional duties and its non-adherence would be treated as a act of violence as contemplated under section 2(a) of the Act of 2023, which may result into initiation of criminal proceedings against the violator.

11. Be that as it may, the communication between a client and his counsel is cloaked in privilege and lies at the heart of the administration of justice. This protection is not a matter of convenience, but a matter of principle, rooted in the sanctity of the advocate-client relationship. Moreso, the element of confidence is absolute and the counsel cannot be compelled in any investigation process, including proceedings initiated by the authorities to reveal the contents, documents, or videos entrusted to him by his client.

Thus, where an accused transmits material, however, sensitive, to his advocate for legal purposes that squarely falls within the privilege communication, and the lawyer cannot lawfully be served with the notice calling upon to disclose a fact, which is the sanctity and confidence that the law guards with the special care, ensuring that the advocate remains the custodian to his client's trust.

12. The Supreme Court of Pakistan, in a well celebrated judgment titled as *Syed Ali Nawaz Gardezi v. Lt. Col. Muhammad Yusuf* (PLD 1963 SC 51), made reference to the then sections 126 and 129 of the Evidence Act, 1872 (now Article 9 of the Order of 1984) that communication made by a client with his legal adviser in confidence for the purpose of legal advice are absolutely protected and the counsel cannot be compelled to disclose nor may he do so of his own accord. If the client consents to disclosure, whether expressly or by voluntarily placing the material on record, the protection is considered waived, and the court may treat the communication like any other piece of admissible evidence, but until such waiver is given, neither an investigating agency nor the court can force to open the veil of confidence that shields the advocate-client relationship.

Likewise, the apex court in the case of *"Muhammad Maqsood Sabir Ansari v. District Returning Officer Kasur"* (PLD 2009 SC 28), while referring to the case of *Muhammad Yaqoob Khan v. Adalat Khan* (1983 CLC 976) held that obligation laid down in section 9 of the Order of 1984 continues even after the employment is ceased. It would thus appear that there was a legal impediment for a counsel to divulge any communication or information, which he happened to have had received from his client, during his employment. Moreso, furthermore if, a counsel shares the knowledge acquired by him during his engagement as an advocate is not only unethical, but in patent violation of Article 9 of the Order of 1984 as the provision in question expressly prohibits an advocate from disclosing any communication made to him in his capacity as an advocate for the party.

13. So be it, the affairs of the members of the legal fraternity are governed under the Legal Practitioners and Bar Councils Act, 1973 as well as Pakistan Legal Practitioners and Bar Councils Rules, 1976 ("Rules of 1976"). Chapter XII of the said rules deals with the canons of Professional conduct and Etiquette of Advocates, whereas part B of the said Chapter provides guidelines for advocate-client relationship. As per rule 134 of the Rules of 1976, a member of Bar is under bounden duty to maintain a high standard of his profession in addition to his own dignity. If a counsel opts to share anything with the somebody about which he came cross during the period of his engagement by a particular party, perhaps on the one hand he would be lowering down the dignity of the

profession and on the other would be guilty of misconduct, thus an advocate is bound to maintain confidentiality about the facts, which came into his knowledge as a result of his engagement.

14. Still and all, the shield is not absolute. Privilege does not extend to situations, where the lawyer himself indulges in illegal purposes and becomes a vehicle for transmitting obscene or unlawful material or conceals facts showing that a crime or fraud has been committed, thus in such case, the protection will be withdrawn, for the law will not shelter complicity under the guise of confidence.
15. In the instant case, admittedly, the petitioner was counsel for his client in two suits and in a criminal trial of PECA Act, 2016, which fact was admittedly known to the officials of FIA. Similarly, the FIA officials have also failed to establish that the obscene pictures and videos were further transmitted from the mobile of the petitioner to somewhere else with the purpose to publicly exhibit and transmit the said material. In this context, learned counsel for the petitioner stressed that the petitioner had time and again informed respondent No.1 that he has nothing to do with the obscene material and whatever his client had transmitted him was for the purpose of evidence, but yet respondent No.1 kept asking him to come to his office and lastly sent him notice under section 160 of Cr.P.C., wherein he has been labeled as proposed perpetrator.

The issuance of notice to a counsel merely for being the recipient of material sent by his client, without any suggestion of active involvement is an overreach, thus the investigating authorities does not have the entire and total authority of running investigation according to their whims. Even otherwise, not to speak only for the protection afforded to an advocate under the rule of privilege, even an ordinary recipient of obscene or indecent content cannot be fastened with liability under section 21 of the PECA, 2016 as the provision penalizes those, who intentionally exhibit, display, transmit, intimidate or entice through sexually explicit material, but it nowhere criminalizes the passive receipt of such content. Mere receipt, without any act of transmission or public exhibition, does not fall within the mischief of the section *ibid*.

Thus, when the legislature itself has refrained from treating a recipient as culpable, there can be no basis to compel an advocate, who is in any case doubly shielded by the sanctity of professional privilege to disclose or answer for material confided in him by his client, thus mere recipient, who does nothing, but receives, is not covered in the language.

16. That apart, the United Nations General Assembly in its various resolutions has set the global standards and principles in align with acts, more specifically at the Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders, held in Havana, Cuba, in September 1990, while adopting the "Basic Principles on the Role of Lawyers" and solicited the governments to ensure that lawyers can carry out their professional duties without intimidation, harassment, or improper interference, and whenever the lawyers face threats due to their professional activities, the authorities are obligated to provide them with adequate protection.

17. For what has been discussed hereinabove, we are of the mindful view that respondent No.1 has acted beyond his authority and jurisdiction by violating the provisions of the rules and acts discussed in hereinabove, thus, we, deem it appropriate to direct the Director General, FIA to take disciplinary action against Ayaz Khan Sub-Inspector FIA Cyber Crime Circle, Quetta (respondent No.1) and submit report thereof to the Registrar of this Court for our perusal in chambers.
18. For the foregoing reasons, the petition is allowed and consequently notice issued to the petitioner under section 160 of Cr.P.C. is declared null and void, having no legal effect.

MH/129/Bal. Petition allowed.

